

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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BRYAN AGUILAR-LOPEZ,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, and P.O. PATROCIN J. ACUNA,
Shield No.: 23021,

Defendants.

-----X
To the above-named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
August 23, 2024

Index No.:

Date purchased: 8/23/24

Plaintiff designates
KINGS COUNTY
as the place of Trial.

SUMMONS

The basis of the venue is
Place of Occurrence:

311 Lincoln Place
Brooklyn, New York


Adam Hill, Esq. of
ROSS & HILL, ESQS.
Attorneys for Plaintiff
45 Broadway, Suite 1110
New York, New York 10006
718-855-2324

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.:

BRYAN AGUILAR LOPEZ,

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, and P.O. PATROCIN J. ACUNA,
Shield No.: 23021,

Defendants.

-----X

Plaintiff herein, by his attorneys, ROSS & HILL, complaining of the above-named defendants, respectfully shows to the Court and alleges the following upon information and belief:

1. At all times hereinafter mentioned, plaintiff was and still is a resident of the County of Kings, City and State of New York.
2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, defendant NEW YORK CITY POLICE DEPARTMENT is an agency acting on behalf of The City of New York and engaged by The City of New York to perform, inter alia, law enforcement, public safety, and emergency response for the residents of The City of New York.
4. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK, its agents, servants and employees operated, maintained and controlled the NEW YORK CITY POLICE DEPARTMENT, including all the Police Officers thereof.
5. At all times hereinafter mentioned, defendant P.O. PATROCIN J. ACUNA, Shield

No.: 23041, was a resident of the State of New York.

6. At all times hereinafter mentioned, P.O. PATROCIN J. ACUNA, Shield No.: 23041, was a Police Officer employed by the New York City Police Department and at all times herein mentioned was acting in the scope of his employment as a Police Officer.

7. On or about April 15, 2024, plaintiff's Notice of Claim was made and served upon the defendants, said service occurring within ninety (90) days of the incident giving rise to this lawsuit.

8. That more than thirty (30) days have elapsed since the service of said Notice and adjustment or payment of plaintiff's claim has been neglected or refused.

9. That this action is being commenced within one (1) year and ninety (90) days after the happening of the events upon which the claim is based.

10. That on April 2, 2024, at approximately 9:00 PM, in front of 311 Lincoln Place, Brooklyn, New York, defendants handcuffed, arrested, assaulted, and battered plaintiff.

11. That defendant P.O. PATROCIN J. ACUNA, Shield No.: 23041, used unnecessary and excessive force.

12. That plaintiff sustained severe bodily injuries as a result of the excessive force used on plaintiff.

13. The incident resulted from the intentional, wanton, and wrongful conduct of the defendants, and more specifically that of defendant P.O. PATROCIN J. ACUNA, Shield No.: 23041.

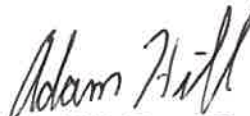
14. As a result of the foregoing, plaintiff sustained compensatory damages and exemplary damages in an amount which exceeds the jurisdiction of any lower court.

WHEREFORE, plaintiffs demand judgment against the defendants in amounts that

exceed the jurisdiction of any lower court, with interest, costs and disbursements of the action.

Dated: New York, New York
August 23, 2024

Yours, etc.,

A handwritten signature in black ink, appearing to read "Adam Hill".

Adam Hill, Esq. OF
ROSS & HILL, ESQS.
Attorneys for Plaintiff
45 Broadway, Suite 1110
New York, New York 10006
(718) 855-2324

ATTORNEY VERIFICATION

Pursuant to CPLR § 2106, I affirm this **23rd day of August 2024**, under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, and I understand that this document may be filed in an action or proceeding in a court of law.

I, the undersigned, an attorney duly admitted to practice law in the Courts of this State, state that I am an associate at the firm of Ross and Hill, Esqs., attorneys of record for plaintiff in this action; I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief and, as to those matters, I believe it to be true.

The reason this verification is made by me and not by the plaintiff is that plaintiff is presently outside the County in which your affirmant maintains offices.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows: consultation with plaintiff, investigative reports, memoranda and other data in the file concerning the subject matter of the within litigation.

I affirm the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
August 23, 2024



ADAM HILL

Index No.:

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

BRYAN AGUILAR-LOPEZ,

Plaintiff,

-against-

**CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
and P.O. PATROCIN J. ACUNA, Shield No.: 23021,**

Defendants,

SUMMONS & VERIFIED COMPLAINT

**ROSS AND HILL, ESQS.
Attorneys for Plaintiff
Office and Post Office Address
45 Broadway, Suite 1110
New York, New York 10006
Tel (718) 855-2324
Fax (718) 855-4617**

To:

**Service of a copy of the within
is hereby admitted.**

Dated:

Attorney(s) for
